

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.5072 OF 2024

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Md. Shariful Islam and others

.... Petitioners

-Versus-

A.T.M. Jashimuddin being dead his heirs- Monowara Begum and others

.... Opposite parties

Mr. Sheikh Habib-ul Alam with

Mr. Md. Moshiur Rahman, Advocates

.... For the petitioner.

Mr. Md. Mahbubur Rahman Kishore, Advocate

.... For the opposite party

Nos.1-3.

Heard and Judgment on 25.05.2025.

This Rule was issued calling upon the opposite party Nos.24, 30, 32, 34 and 60 to show cause as to why the impugned judgment and decree dated 27.08.2024 passed by the learned Additional District Judge, 5th Court, Dhaka in Title Appeal No.410 of 2015 dismissing the appeal, thereby affirming the judgment and decree dated 30.09.2015 passed by the learned Additional Assistant Judge, 1st Court, Dhaka in Title Suit No.230 of 2006 dismissing the suit should not be set aside

and/or other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioners as plaintiffs instituted above suit for specific performance of contract dated 4 December 1996 executed by defendant No.1 to the plaintiffs for sale of 707 square feet land out of 1414 square feet alleging that defendant was the owner and possessor of above 1414 square feet land who obtained loan from the House Building Finance Corporation for construction of a 4 storied building. Due to financial crisis defendant entered into a contract with the plaintiffs on 08.12.1996 for sale of 707 square feet land for Taka 2,00,000/- and received above money from the plaintiffs. It was provided in above agreement that both party shall bear the expenses for construction of the building equally and pay equally any loan incurred from any other person for above construction and a tri party agreement will be executed by the plaintiffs, defendant No.1 and the House Building Finance Corporation. At the instance of defendant No.1 a notice was issued on 18.05.2005 treating the plaintiffs as tenants.

Defendant No.1 contested above suit by filing a written statement alleging that the plaintiffs are brothers of his wife and they entered into possession of above building as monthly tenants. But after laps of some months they stopped paying rents and filed this false suit on the basis of some concocted and fraudulent documents. Defendant No.1 did not enter into any contract for sale of above land or for construction of a building in above land.

At trial plaintiffs examined 8 witnesses and defendants examined one. Documents of the plaintiffs were marked as Exhibit Nos.1-6 series and those of the defendants were marked as Exhibit Nos."Ka" and "Kha".

On consideration of facts and circumstances of the case and evidence on record the learned Assistant Judge dismissed above suit.

Being aggrieved by above judgment and decree of the trial Court above plaintiffs as appellants preferred Title Appeal No.410 of 2015 to the District Judge, Dhaka which was heard by the learned Additional District Judge, 5th Court who dismissed above appeal and affirmed the judgment and decree of the trial Court.

Being aggrieved by and dissatisfied with above judgment and decree of the Court of Appeal below above appellants as petitioners moved to this Court with this Civil Revisional application under Section 115(1) of the Code of Civil Procedure and obtained this Rule.

Mr. Sheikh Habib-ul Alam, learned Advocate for the petitioners submits that admittedly defendant No.1 was the owner and possessor of 1414 square feet land and he undertook to construct a four storied building in above land and he obtained loan from the House Building Corporation. Defendant No.1 needed more money for completion of the construction work and he entered into a contract with the plaintiffs who are his brother in laws for sale of 707 square feet land and shared construction of the building. An agreement was executed on 18.12.1996 and defendant No.1 received Taka 2,00,000/- and delivered possession.

Plaintiffs submitted above original deed of agreement to the trial Court but from the court above agreement was lost. At trial the plaintiffs produced a notarized photocopy of above deed of agreement which was proved by PW6 Advocate Abdul Mazid. Besides the plaintiffs have examined the shopkeepers from whom plaintiffs purchased building materials of Taka 10,00,000/-. The plaintiffs also paid Taka 1,40,000/- to Abdul Matin. Plaintiffs spent 50% money for construction of above building and paid Taka 2,00,000/- as value of 707 square feet land. But defendant No.1 refused to execute and register a sale deed. The learned Judges of both the Courts below utterly failed to appreciate above the materials on record properly. The learned Judge of the Court of Appeal below most illegally dismissed the appeal and affirmed the unlawful judgment and decree of the trial Court which is not tenable in law.

On the other hand Mr. Md. Mahabubur Rahman Kishore, learned Advocate for opposite party Nos.1-3 submits that the learned Judge of the trial Court on consideration of evidence on record rightly held that the plaintiffs failed to prove that they submitted above deed of agreement dated 08.12.1996 to the trial Court and the same was lost. PW1 stated in his evidence that above deed of agreement was lost on 08.12.1996 long before the filing of this suit on 28.06.2005. While giving evidence as PW6 Advocate Abdul Mazid who notarized above photocopy of the agreement stated that there were no signatures of both the parties on each page of above deed of agreement. He gave signature on above photocopy seeing the signatures on the last page. In

the second page the sentence as to receipt of Taka 2,00,000/- was subsequently inserted. On consideration of above facts and circumstances of the case and evidence on record the learned Judges of both the Courts below concurrently held that the plaintiffs have miserably failed to prove due execution of above deed of agreement dated 08.12.1996 and accordingly the trial Court dismissed the suit and the Court of Appeal dismissed the appeal. Since above concurrent findings of facts of both the Courts below are based on evidence on record this Court cannot in its revisional jurisdiction interfere with above concurrent findings of fact.

I have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

It is admitted that defendant No.1 was the rightful owner and possessor of 1414 square feet land and he obtained loan from the House Building Finance Corporation for construction of a four storied building in above land.

Plaintiffs claimed that defendant No.1 entered into an unregistered agreement for sale of 707 square feet land for Taka 2,00,000/- on 08.12.1996. Defendant No.1 has denied to have entered into any agreement for sale of above land or joint construction of above building. The plaintiffs did not produce above original unregistered deed of agreement dated 08.12.1996 in evidence. Learned Advocate for the petitioners submits that the plaintiffs submitted above original deed of agreement to the trial Court but above document was lost from the

Court. But no such averments have been made by the plaintiffs in the plaint nor any evidence was adduced at trial to prove above claim. In this regard PW1 stated in his evidence that the original deed of agreement dated 08.12.1996 was lost and they could not submit above document in Court. This suit was filed on 28.06.2006 and if above document was lost before above date then it is not understandable as to how PW6 Advocate Abdul Mazid could notarize a photocopy of above deed of agreement dated 20.08.2007 without seeing the original deed. Plaintiffs produced a notarized photocopy of above deed of agreement dated 08.12.1996 which was marked as Exhibit No.1. It turns out from above deed that the same was attested by a Senior Assistant Secretary of the Ministry of Public Works on 20.08.2001 and attested and notarized PW6 Advocate Abdul Mazid on 20.08.2001. Above Senior Assistant Secretary was not examined as a witness by the plaintiff. Advocate Abdul Mazid, who attested and notarized above deed of agreement gave evidence as PW6. In cross examination he stated that there were no signatures of the executants of above deed on each page of above deed of agreement. He attested and notarized above deed seeing the signature on the last page of above deed. Above deed of agreement consists of three pages and in first two pages the alleged signature of defendant No.1 appears to be totally different from his signature at Page No.3. From above evidence of PW6 Abdul Mazid it appears that the signatures of defendant No.1 in first two pages of the deed of agreement were not there at the time of attestation and

notarization of a photocopy of above deed of agreement. In above deed of agreement the sentence “sale of 707 square feet land for Taka 2,00,000/-” and “receipt of above Taka 2,00,000/-” were stated at Page Nos.1 and 2 which pages do not contain the signatures of the parties to above deed of agreement.

The learned Judges of both the Courts below on a detailed analysis of above deed of agreement rightly held that the fifth line of the second page of above deed of agreement as to receipt of Taka 2,00,000/- by defendant No.1 was subsequently inserted.

Plaintiffs have claimed that they purchased building materials of Taka 10,00,000/- but there is no provision in above deed of agreement for purchase of building materials by the plaintiffs. It has been provided in above deed of agreement that any loan obtained from a third party for the construction of the above building would be paid equally by the parties. It has been stated in above deed of agreement that defendant No.1 has obtained loan from House Building Finance Corporation but there is no mention that defendant No.1 obtained loan of Taka 1,40,000/- from one Martin or the plaintiffs shall pay above loan. In above agreement it was agreed upon that the total cost of construction of above four storied building will be divided equally between two parties. There is no mention either in above deed of agreement or in the plaint as to what was the total cost of construction of above building and how much money was paid by the plaintiffs to defendant No.1 for above construction.

On consideration of above facts and circumstances of the case and evidence on record I am unable to find any illegality or irregularity in the impugned judgment and decree passed by the learned Additional District Judge, 5th Court, Dhaka in above appeal nor I find any substances in this Civil Revisional application under Section 115(1) of the Code of Civil Procedure and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is hereby discharged.

However, there will be no order as to costs.

Send down the lower Court's records immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER.